

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
August 20, 2026
8:30 AM/1:30 PM

6. JOHN NEIBAUER V. VICTORIA NEIBAUER

25FL0358

On May 29, 2026, Petitioner filed a Request for Order (RFO) seeking orders regarding the sale of the former family residence, division of Respondent's pension, preparation of the QDRO and exclusive use and possession of property orders. All required documents were served on May 28th.

Respondent filed and served her Responsive Declaration to Request for Order on July 20th.

According to Petitioner, there is a pending offer to purchase the former family residence, located on East Road in Placerville, for \$635,000. Petitioner asks that Respondent be ordered to immediately accept and execute the necessary paperwork to complete the sale on that offer. Alternatively, he asks that the parties be ordered to list the residence for sale with Ty Russel of Century 21 acting as the listing agent. He asks that Mr. Russel be given the authority to set the listing price and determine which repairs and maintenance are necessary for the sale. He asks that the parties split the costs of such repairs/maintenance equally and that Respondent be ordered to keep the home in a clean and saleable condition. Once sold, he asks that the proceeds be placed in Petitioner's Attorney's IOLTA trust account.

In addition to the orders regarding the sale of the former family residence, Petitioner is requesting Respondent's SCERS pension plan be divided pursuant to the time rule. He asks that the parties be ordered to utilize Moon Schwartz and Madden for the production of the QDRO and that the parties equally split the cost of doing so.

Finally, Petitioner requests exclusive use, possession, and control of the property listed on Exhibit 5 to his RFO and the court to reserve on division of the values of those assets until the time of trial.

Respondent agrees to sell the former family residence but she opposes the use of Ty Russel as the listing agent. She would agree to listing the property with Viktor Luknov. She opposes all of Petitioner's other requests, including Petitioner's request for exclusive use and possession of the Exhibit 5 items, instead she asks that those items be ordered sold. She further asks the court to order Petitioner to immediately obtain his own health insurance.

Regarding the sale of the marital residence, pursuant to Family Code § 2553, the court has broad discretion to "...make any orders [it] considers necessary..." and in doing

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so, the court does have authority to order the sale and division of proceeds of the marital residence. Fam. Code § 2553; See *also* Marriage of Holmgren, 60 Cal. App. 3d 869 (1976); See *also* In re Marriage of Horowitz, 159 Cal. App. 3d 368 (1984). In keeping with the court's aforementioned authority, the parties are ordered to sell the former family residence located on East Road in Placerville forthwith. The parties shall not use either Ty Russel or Viktor Luknov for the sale. Instead, Respondent shall give Petitioner the names of three listing agents no later than August 27, 2026. Petitioner shall choose one of the three and inform Respondent of his choice no later than September 3, 2026. The selected listing agent shall have the authority to select the listing price and determine which repairs and maintenance, if any, are necessary to prepare the home for sale. The parties are ordered to equally share in the costs of any such repairs or maintenance.

The parties are ordered to take no action which would delay, hinder, or otherwise prevent the sale, including actions which would prevent cleaning, repairs, and maintenance or showing of the home in furtherance of its sale. The parties are ordered to cooperate with the real estate professional to make the home available for showings and to communicate with the real estate professional as needed. The parties are ordered to accept any reasonable offer for the purchase of the home if one is received. The parties are to sign all documents related to the sale of the home in a timely manner. Net proceeds of the sale are to be placed in the Attorney Trust Account of Petitioner's counsel until written agreement of the parties or until court order to release the proceeds. The court reserves jurisdiction over all aspects of the sale and distribution of the net proceeds of the sale.

Regarding the personal property items listed in Exhibit 5 attached to Petitioner's RFO, Petitioner's request for exclusive use, possession and control is denied. Likewise, Respondent's request to sell the items is also denied. The items are to be stored properly and kept in their current condition, normal wear and tear excepted, pending a final decision on the division of assets or mutual written agreement of the parties.

Turning to the issue of the SCERS pension, the pension is to be divided pursuant to the time rule. The parties are to retain Moon, Schwartz and Madden for the production of the QDRO and they are ordered to equally share in the cost thereof.

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

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TENTATIVE RULING #6: THE PARTIES ARE ORDERED TO SELL THE FORMER FAMILY RESIDENCE LOCATED ON EAST ROAD IN PLACERVILLE FORTHWITH. THE PARTIES SHALL NOT USE EITHER TY RUSSEL OR VIKTOR LUKNOV FOR THE SALE. INSTEAD, RESPONDENT SHALL GIVE PETITIONER THE NAMES OF THREE LISTING AGENTS NO LATER THAN AUGUST 27, 2026. PETITIONER SHALL CHOOSE ONE OF THE THREE AND INFORM RESPONDENT OF HIS CHOICE NO LATER THAN SEPTEMBER 3, 2026. THE SELECTED LISTING AGENT SHALL HAVE THE AUTHORITY TO SELECT THE LISTING PRICE AND DETERMINE WHICH REPAIRS AND MAINTENANCE, IF ANY, ARE NECESSARY TO PREPARE THE HOME FOR SALE. THE PARTIES ARE ORDERED TO EQUALLY SHARE IN THE COSTS OF ANY SUCH REPAIRS OR MAINTENANCE.

THE PARTIES ARE ORDERED TO TAKE NO ACTION WHICH WOULD DELAY, HINDER, OR OTHERWISE PREVENT THE SALE, INCLUDING ACTIONS WHICH WOULD PREVENT CLEANING, REPAIRS, AND MAINTENANCE OR SHOWING OF THE HOME IN FURTHERANCE OF ITS SALE. THE PARTIES ARE ORDERED TO COOPERATE WITH THE REAL ESTATE PROFESSIONAL TO MAKE THE HOME AVAILABLE FOR SHOWINGS AND TO COMMUNICATE WITH THE REAL ESTATE PROFESSIONAL AS NEEDED. THE PARTIES ARE ORDERED TO ACCEPT ANY REASONABLE OFFER FOR THE PURCHASE OF THE HOME IF ONE IS RECEIVED. THE PARTIES ARE TO SIGN ALL DOCUMENTS RELATED TO THE SALE OF THE HOME IN A TIMELY MANNER. NET PROCEEDS OF THE SALE ARE TO BE PLACED IN THE ATTORNEY TRUST ACCOUNT OF PETITIONER'S COUNSEL UNTIL WRITTEN AGREEMENT OF THE PARTIES OR UNTIL COURT ORDER TO RELEASE THE PROCEEDS. THE COURT RESERVES JURISDICTION OVER ALL ASPECTS OF THE SALE AND DISTRIBUTION OF THE NET PROCEEDS OF THE SALE.

REGARDING THE PERSONAL PROPERTY ITEMS LISTED IN EXHIBIT 5 ATTACHED TO PETITIONER'S RFO, PETITIONER'S REQUEST FOR EXCLUSIVE USE, POSSESSION AND CONTROL IS DENIED. LIKEWISE, RESPONDENT'S REQUEST TO SELL THE ITEMS IS ALSO DENIED. THE ITEMS ARE TO BE STORED PROPERLY AND KEPT IN THEIR CURRENT CONDITION, NORMAL WEAR AND TEAR EXCEPTED, PENDING A FINAL DECISION ON THE DIVISION OF ASSETS OR MUTUAL WRITTEN AGREEMENT OF THE PARTIES.

TURNING TO THE ISSUE OF THE SCERS PENSION, THE PENSION IS TO BE DIVIDED PURSUANT TO THE TIME RULE. THE PARTIES ARE TO RETAIN MOON SCHWARTZ AND MADDEN FOR THE PRODUCTION OF THE QDRO AND THEY ARE ORDERED TO EQUALLY SHARE IN THE COST THEREOF.

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PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.